

CONTRACT FOR AUTONOMOUS PROFESSIONAL COLLABORATION

Between

Techama SAGL, with a registered office in Vicolo del Lido n. 1, 6900 Lugano – Switzerland, registered in the Commercial Register of the Canton Ticino under order number CHE-188.918.736, in the person of its legal representative pro tempore (hereinafter the "**Company**" or "**Techama**")

and

Sim Hirse, with residence in Pihlemäe, Jõepera küla, Antsla vald, 66425 Võru maakond – Estonia, VAT Number EE101813840, registered in the relevant professional register where applicable (hereinafter the "**Collaborator**")

jointly, the "**Parties**".

Preamble

- i. The Company operates in the sector of developing advanced software and technological solutions, carrying out activities of design, realization, evolution, and maintenance of digital products and services with high technical and innovative content. Within the scope of these activities, the Company uses, where necessary, the collaboration of external professionals endowed with specific specialized skills, in order to temporarily integrate its internal know-how and ensure the high quality level of the developed projects.
- ii. The Collaborator declares to exercise their professional activity autonomously and independently, with their own organization of means, resources, and operational methods, assuming the economic risk of the activity performed and without exclusivity constraints, except as expressly provided for in this contract. The Collaborator also declares to possess the technical skills, professional experience, and organizational capacity necessary for the execution of the activities subject to the assignment, as well as to habitually operate for a plurality of clients.
- iii. The Parties acknowledge and agree that this contract governs a relationship of autonomous professional collaboration, free from elements of subordination, control, or stable integration of the Collaborator into the Company's business organization. Any coordination between the Parties is limited to the functional needs of technical and project alignment and does not entail the exercise of directive, disciplinary, or hierarchical powers by the Company.
- iv. The Parties acknowledge that this Agreement governs a relationship of autonomous professional collaboration and shall be construed as a mandate agreement pursuant to Articles 394 et seq. of the Swiss Code of Obligations (CO), excluding any employment relationship pursuant to Articles 319 et seq. CO.

These premises constitute an integral and substantial part of this contract.

Article 1 – Subject of the Collaboration

- 1.1 With this Agreement, the Company engages the Collaborator for an independent professional engagement, the object of which is the performance of activities of a predominantly intellectual and specialized nature, including, without limitation, software development, programming of applications and IT systems, design and evolutionary maintenance of technological solutions,

Techama Sagi

Vicolo del Lido 1 - 6900 Lugano (CH)

+41 91 229 55 98 - www.techama.ch - info@techama.ch

as well as the drafting of technical documentation, functional analyses, and support activities related to the development of the Company's projects.

- 1.2 The activities forming the subject of the collaboration shall be carried out by the Collaborator based on the project needs identified by the Company from time to time, in accordance with the agreed objectives and technical specifications, it being understood that the Collaborator shall retain full autonomy in determining the methods of execution, tools, and organization of the work.
- 1.3 The Parties agree that the engagement may be structured in phases, projects, milestones, or specific activities, which may also be defined through written communications, work orders, or project documents, without this implying any modification of the independent nature of the relationship.
- 1.4 The Collaborator does not assume any obligation of exclusivity towards the Company, except as expressly provided for in this Agreement, and shall remain free to provide professional services to other clients, provided that such activities do not interfere with the proper execution of the entrusted activities and do not constitute a breach of confidentiality obligations or the non-competition provisions.
- 1.5 It is expressly understood that this engagement does not entail any obligation of continuous presence, availability, or performance of activities at the Company's premises, nor does it result in the integration of the Collaborator into the Company's organizational structure, except for meetings or technical coordination activities that may become occasionally necessary.
- 1.6 The Parties acknowledge that the object of the collaboration is oriented towards the achievement of project related and objectives and does not constitute the performance of work subject to ongoing supervision or directive powers of an employment relationship.
- 1.7 The activities subject to the collaboration may therefore be structured into specific deliverables, project milestones, or technical results agreed upon between the Parties, which shall be identified in writing, including through technical documentation, project specifications, or operational communications.

Article 2 – Autonomous Nature of the Relationship

- 2.1 This Agreement does not constitute, nor shall it be construed as, an employment relationship within the meaning of Articles 319 et seq. of the Swiss Code of Obligations, nor as any other legal relationship involving subordination, dependency, or integration into the Company's organizational structure.
- 2.2 The Collaborator performs the activities under this Agreement **in full organizational, technical, and managerial autonomy**, without constraints as to working hours or place of work, and without any form of stable integration into the Company's organizational structure, it being expressly understood that no managerial, disciplinary, or hierarchical authority is vested in the Company.
- 2.3 Coordination with the Company shall be strictly limited to the needs of technical and functional alignment of the projects, including the definition of objectives, operational priorities, and milestones, and **shall not constitute, nor be construed as, the exercise of any managerial, disciplinary, or hierarchical authority**.
- 2.4 The Collaborator shall primarily use their own means, tools, and know-how, assuming the full economic risk of the professional activity performed and shall remain free to organize their activity for other clients, without prejudice to the provisions of Article 10 (Non-Competition Agreement).

Techama Sagl

Vicolo del Lido 1 - 6900 Lugano (CH)

+41 91 229 55 98 - www.techama.ch - info@techama.ch

- 2.5 The Parties expressly acknowledge that the agreed compensation is linked to the professional activities performed and the results achieved and is not in any way connected to any obligation of continuous presence or availability.
- 2.6 Any operational instructions, technical specifications, project guidelines, coordination requests, verification of deliverables, use of collaborative platforms, Company IT tools, access to repositories, ticketing systems, development environments, or participation in project meetings, where provided or required for organizational or project security purposes, shall be deemed solely as functional coordination measures and shall not constitute, nor be construed as, the exercise of directive, disciplinary, or hierarchical powers typical of an employment relationship.
- 2.7 Accordingly, the existence of an employment relationship pursuant to Articles 319 et seq. CO is expressly excluded, save for any mandatory requalification based on the actual factual circumstances of the relationship.

Article 3 – Duration

- 3.1 This contract shall have a fixed term of 12 (twelve) months, commencing on date of signature.
- 3.2 Upon expiry, this Agreement may be renewed only by written agreement between the Parties.

Article 4 – Withdrawal (Termination)

- 4.1 Each Party may terminate this Agreement at any time, without the obligation to provide cause, by giving thirty (30) days' prior written notice to the other Party, in accordance with Article 404 of the Swiss Code of Obligations.
- 4.2 In the event of termination, the Collaborator shall be entitled exclusively to the compensation accrued for the activities actually performed up to the effective date of termination, with the exclusion of any indemnity, substitute compensation, or damages.

Article 5 – Resolution

- 5.1 The right of each Party to request the termination of this contract pursuant to Articles 107 et seq. of the Swiss Code of Obligations in the event of non-performance by the other Party remains reserved.
- 5.2 The Parties agree that this Agreement may be terminated for cause by written notice from the non-defaulting Party, with immediate effect, in accordance with Articles 107 et seq. of the Swiss Code of Obligations, should the other Party incur one of the following breaches:
- a) breach of the confidentiality obligations under Article 9;
 - b) breach of the provisions regarding intellectual property under Article 8 and/or use, reproduce, disclose, communicate or otherwise exploit the Company's works or materials externally without prior written authorization;
 - c) breach of the non-competition agreement under Article 10;

- d) improper use, disclosure, or failure to return or delete, upon termination of the relationship or upon request, credentials, accounts, development environments, tools, or Company assets under Article 11;
- e) assignment of the Agreement, substitution, or delegation of the performance of the activities, in whole or in part, to third parties without prior written authorization, in breach of this Agreement;
- f) engagement in conduct likely to cause serious and immediate harm to the security of the Company's IT systems or the entrusted projects, including failure to comply with minimum security instructions communicated by the Company.

5.3 In the event of termination, the following shall remain in full force and effect:

- i. the Collaborator's obligation to promptly deliver to the Company all materials produced or otherwise held in connection with the performance of this Agreement (including documentation, credentials, and materials), and to immediately cease any use thereof;
 - ii. the obligation to return or delete Company tools and assets in accordance with the Company's instructions;
 - iii. the survival of confidentiality obligations, intellectual property provisions, and any other provisions which by their nature are intended to survive termination, including, where applicable, post-contractual obligations.
- 5.4 It is understood that, in the event of termination attributable to the Collaborator, the Company shall pay exclusively the compensation accrued for the activities actually performed and accepted up to the effective date of termination, without prejudice to the right to compensation for any further damages.

Article 6 – Compensation and Invoicing Methods

- 6.1 The compensation payable to the Collaborator is strictly linked to the professional activities actually performed and the results achieved, based on the hours worked and/or the project milestones agreed upon between the Parties, with the express exclusion of any form of fixed remuneration attributable to an obligation of continuous availability or presence.
- 6.2 The Parties expressly acknowledge that the compensation provided under this Agreement constitutes professional fees for independent services and does not represent salary, wages, or any form of employment-related remuneration.
- 6.3 The compensation for the Services shall be calculated on an hourly basis at a rate of € 30 per hour of effective work performed.
- 6.4 The Consultant's activity shall be subject to a maximum of 8 (eight) working hours per day and 40 (forty) working hours per week.
- 6.5 Any activity exceeding the above limits, as well as any work performed during weekends and/or public holidays, shall require the prior written approval of Techama. In the absence of such prior authorization, any excess hours shall not be eligible for compensation.
- 6.6 The total compensation shall be determined based solely on the number of hours actually performed and duly authorized, recorded, and validated by Techama during the relevant reference period.
- 6.7 The Collaborator shall issue monthly invoices based on the hours actually worked during the relevant reference period, attaching appropriate supporting documentation evidencing the hours worked and, where applicable, the milestones achieved.

Techama Sagl

Vicolo del Lido 1 - 6900 Lugano (CH)

+41 91 229 55 98 - www.techama.ch - info@techama.ch

- 6.8 Invoices shall be payable only to the extent that the relevant Services have been duly performed and, where applicable, formally accepted in accordance with the agreed project criteria.
- 6.9 Any failure to achieve agreed milestones, or any reduction in the hours actually performed, shall result in a corresponding adjustment of the compensation. Such adjustment shall not be construed as non-performance, breach, or disciplinary measure.
- 6.10 All fiscal, social security, insurance, and contributory charges arising from the performance of the professional activity shall remain entirely and exclusively the responsibility of the Collaborator, with the express exclusion of any obligation on the part of the Company.
- 6.11 The Collaborator expressly assumes full responsibility for the declaration and payment of any taxes, social security contributions, insurance premiums, and any other charges related to the compensation received under this Agreement.
- 6.12 The compensation payable to the Collaborator shall in any case remain linked to the effective performance of the activities referred to in Article 1 and shall not be construed as salary, wages, or any other form of remuneration typical of an employment relationship, the Collaborator's full fiscal, social security, and insurance autonomy remaining unaffected.
- 6.13 Nothing in this Agreement shall be interpreted as creating any entitlement to paid leave, holiday pay, sick pay, severance, or any other benefit typically associated with an employment relationship.

Article 7 – Professional Liability

- 7.1 The Collaborator undertakes to perform the activities under this Agreement with the level of care and diligence required by the professional nature of the engagement, in accordance with Article 398 of the Swiss Code of Obligations (duty of care of mandatory).
- 7.2 The Collaborator shall be liable only for direct damages resulting from wilful misconduct (intent) or gross negligence in the performance of the engagement, to the extent by applicable mandatory law, and any liability for indirect, incidental, consequential damages, or loss of opportunity is expressly excluded.
- 7.3 The obligations undertaken by the Collaborator shall be deemed obligations of means (best efforts obligations), except for specific deliverables expressly agreed in writing as obligations of result.

Article 8 – Intellectual Property

- 8.1 All source codes and object codes, documents, technical specifications, designs, software architectures, algorithms, tools, materials, and assets developed by the Collaborator within the scope and in connection with the performance of this Agreement (hereinafter the "Works") shall be and remain the exclusive property of the Company.
- 8.2 The Collaborator hereby irrevocably assigns, transfers and conveys to the Company, on an exclusive basis without territorial or time limitations, all intellectual property rights and economic rights of exploitation in the Works, from the moment of their creation, including the right for the Company to modify, adapt, integrate, reproduce, distribute, transfer to third parties, and otherwise exploit the Works in any form of medium.

Techama Sagl

Vicolo del Lido 1 - 6900 Lugano (CH)

+41 91 229 55 98 - www.techama.ch - info@techama.ch

- 8.3 To the extent that any such rights cannot be validly assigned under applicable law, the Collaborator hereby grants the Company an exclusive, irrevocable, perpetual, worldwide, transferable, and royalty-free license to exercise such rights to the fullest extent permitted by law.
- 8.4 The following are excluded from the transfer referred to in this Article:
- a) code, libraries, frameworks, tools, and pre-existing materials owned by the Collaborator, developed prior to the signing of this Agreement, provided that such materials are expressly identified in writing prior to their use;
 - b) open-source components, used in compliance with the applicable license terms and subject to the prior written approval of the Company.
- 8.5 The Collaborator represents and warrant that:
- any use of pre-existing code shall be limited to what is strictly necessary and shall be properly documented;
 - no pre-existing materials shall be incorporated into the Works without prior written disclosure and approval by the Company;
 - the use of open source components shall fully comply with applicable licenses and shall not impose any obligations of disclosure, licensing, or distribution of the Works or any restriction incompatible with the Company's business model;
 - no open source software subject to "copyleft" or similar restrictive license (including, without limitation, GPL or AGPL) shall be used without the Company's prior written consent.
- 8.6 If any pre-existing materials of the Collaborator are incorporated into the Works, the Collaborator hereby grants to the Company a perpetual, irrevocable, worldwide, royalty-free, transferable, and sublicensable license, for the entire duration of the relevant intellectual property rights, to use, reproduce, modify, adapt, integrate, distribute and exploit such materials without restriction.
- 8.7 The Collaborator hereby waives, to the maximum extent permitted by applicable law, any moral rights in the Works and undertakes not to exercise any such rights against the Company or its successors, licensees, or assigns.
- 8.8 The Collaborator shall indemnify, defend, and hold harmless the Company from and against any and all claims, damages, liabilities, losses, costs, and expenses (including reasonable legal fees) arising out of or in connection with:
- any alleged or actual infringement of third-party intellectual property rights;
 - any breach of the representations and warranties set forth in this Article;
 - any use of unauthorized or non-compliant third-party or open source components.

Article 9 – Confidentiality

- 9.1 The Collaborator undertakes to keep strictly confidential and not to disclose to any third party any information of a technical, commercial, organizational, or strategic nature, as well as any data, documents, materials, or know-how, obtained or learned in connection with the performance of this Agreement (hereinafter the "Confidential Information").
- 9.2 The Collaborator shall use the Confidential Information exclusively for the purposes of performing the activities under this Agreement and shall adopt all appropriate measures to protect its confidentiality.

9.3 The confidentiality obligations set forth herein shall survive termination of this Agreement for an unlimited period, unless otherwise required by applicable mandatory law.

Article 10 – Non-Competition Agreement

- 10.1 For the entire duration of this Agreement, the Collaborator undertakes not to carry out, directly or indirectly, any professional activities that are in direct competition with the software projects, products, or services developed or marketed by the Company within Techama's core business, as known or reasonably knowable by the Collaborator in connection with the performance of this Agreement.
- 10.2 The restriction set forth in the preceding paragraph shall be limited:
- to the technological and application sectors specifically related to the projects entrusted to the Collaborator;
 - to the markets in which the Company effectively operates during the term of the collaboration.
- 10.3 The Parties agree that, upon termination of the relationship, any post-contractual non-competition obligation shall be valid only if agreed in a separate written agreement, in compliance with the general principles governing the validity of contractual obligations pursuant to Articles 19 and 20 of the Swiss Code of Obligations, and provided that such agreement clearly specifies:
- the duration, which in any case shall not exceed 12 (twelve) months;
 - the territorial scope, limited to the geographical markets in which the Company operates or has concrete and demonstrable plans to operate at the time of termination;
 - the relevant sector of activity covered by the restriction;
 - the specific consideration granted in exchange for the non-competition obligation.
- 10.4 In the absence of a written agreement as set forth above, no post-contractual non-competition obligation shall apply.
- 10.5 Nothing in this Article shall be interpreted in such a way as to unduly restrict the Collaborator's professional freedom or to create constraints incompatible with the independent nature of the relationship.

Article 11 – Company Tools and Assets

- 11.1 The potential provision of Company tools, accounts, development environments, credentials, or assets is merely functional to the execution of the assignment and does not entail any integration of the Collaborator into the Company's business organization.
- 11.2 Upon cessation of the relationship, the Collaborator shall immediately cease any use of such tools and assets and shall promptly return or securely delete any materials, data, credentials, or assets received, in accordance with the Company's instructions.

Article 12 – Applicable Law and Cross-Border Coordination

12.1 This Agreement shall be governed by and construed in accordance with Swiss law.

- 12.2 If the Collaborator is tax resident in a country other than Switzerland, any fiscal, tax, social security, and contributory matters shall be governed by the applicable laws of the Collaborator's country of tax residence.
- 12.3 For the avoidance of doubt, the qualification of the relationship as an independent professional engagement and the application of Swiss law to the contractual terms and conditions shall remain unaffected.

Article 13 – Competent Jurisdiction

- 13.1 In the event of any dispute arising out of or in connection with the validity, interpretation, performance, termination, or effectiveness of this Agreement, including its preamble and any annexes, the Parties shall first seek to resolve such dispute amicably, in accordance with principles of fairness, good faith, and mutual cooperation.
- 13.2 To this end, the Party intending to raise a dispute shall notify the other Party in writing, clearly and concisely indicating the subject matter of the dispute and the underlying reasons. The Parties shall promptly engage in good faith consultations in order to identify a mutually acceptable solution within a reasonable period of time.
- 13.3 If the attempt at amicable settlement has not been successful within 3 (three) months from the date of the written notice referred to above, or if it becomes manifestly impossible to reach an agreement before the expiry of such term, either Party may submit the dispute to the competent judicial authority.
- 13.4 In any event, unless otherwise required by mandatory law, the courts of Lugano (Canton Ticino, Switzerland) shall have exclusive jurisdiction over any dispute submitted to the judicial authority pursuant to this Article.

Article 14 – Final Provisions

- 14.1 This Agreement, including its preamble and any annexes, which form an integral and substantial part hereof, **constitutes the entire agreement between the Parties and supersedes and replaces** any prior agreement, understanding, negotiation, or arrangement, whether written or oral, between the Parties relating to the same subject matter.
- 14.2 Any failure or delay by either Party in enforcing any provision of this Agreement or in exercising any right, power, or remedy shall not be construed as a waiver thereof, nor shall it prevent or restrict the further exercise of such right, power, or remedy, nor shall it be deemed a tacit amendment of this Agreement.
- 14.3 If any provision of this Agreement is held to be invalid, ineffective, or unenforceable, in whole or in part, such invalidity or unenforceability shall not affect the validity or enforceability of the remaining provisions, which shall remain in full force and effect.
- 14.4 To the extent not expressly governed by this Agreement, the provisions of the Swiss Code of Obligations shall apply on a subsidiary basis.

Place and Date

Lugano

2026-04-22

Techama

Nicola Cambiaghi

The Collaborator

Sim Hirse

Techama Sgl

Vicolo del Lido 1 - 6900 Lugano (CH)

+41 91 229 55 98 - www.techama.ch - info@techama.ch

Audit trail

Details

FILE NAME	20260421_Contract_Freelance_Techama_Hirse_[ENG] - 21/04/2026, 22:06
STATUS	● Signed
STATUS TIMESTAMP	2026/04/22 08:50:01 UTC

Activity

 SENT	nicola.cambiaghi@techama.ch sent a signature request to: - Nicola Cambiaghi (nicola.cambiaghi@techama.ch) - Siim Hirse (siihirse92@outlook.com)	2026/04/21 20:09:03 UTC
 SIGNED	Signed by Siim Hirse (siihirse92@outlook.com)	2026/04/22 07:44:18 UTC
 SIGNED	Signed by Nicola Cambiaghi (nicola.cambiaghi@techama.ch)	2026/04/22 08:50:01 UTC
 COMPLETED	This document has been signed by all signers and is complete	2026/04/22 08:50:01 UTC

The email address indicated above for each signer may be associated with a Google account, and may either be the primary email address or secondary email address associated with that account.